

**PROFESSIONAL SERVICES AGREEMENT
"AGREEMENT"**

THIS AGREEMENT made this 20th day of DECEMBER, 2010 between American Traffic Solutions, Inc., a Kansas corporation authorized to transact business in the State of Florida as ATS American Traffic Solutions, Inc., (herein "ATS"), with its principal place of business at 7681 East Gray Road, Scottsdale, Arizona 85260, and the City of Sunrise, a Florida municipality, (herein "City" or "Customer"), with principal offices at 10770 W. Oakland Park Boulevard, Sunrise, Florida 33351.

WITNESSETH:

WHEREAS, ATS has the exclusive knowledge, possession and ownership of certain equipment, licenses, and processes, referred to collectively as the "Axis™ System" (herein "Axis"), and

WHEREAS, Customer desires to use the Axis™ System to monitor and enforce red light violations, and to issue citations for red light violations; and

WHEREAS, on or about May 13, 2010, the Governor of the State of Florida signed CS/CS/HB325 into law, resulting in the Law of Florida 2010-80 taking effect on July 1, 2010; and

WHEREAS, Laws of Florida 2010-80 expressly authorizes municipalities to use traffic infraction detectors to enforce certain provisions of Chapter 316 of the Florida Statutes, subject to certain requirements; and

WHEREAS, the City Commission of the City adopted Ordinance 20-10-A, which authorizes the City to provide for the enforcement of red light violations using traffic infraction detectors in accordance with the provisions of Law of Florida 2010-80; and

WHEREAS, the City issued RFP (09)A-09, to which ATS responded, and Customer selected ATS to provide services to implement and carry on the Customer's red light enforcement program, and Customer desires to engage the services of ATS to provide certain equipment, processes and back office services to that Authorized Employees of the Customer are able to monitor, identify and enforce red light running infractions; and

WHEREAS, the Customer's City Commission adopted Resolution No. 10-135, which approved the award of RFP (09)A-09 to American Traffic Solutions.

NOW THEREFORE, the parties agree:

1. DEFINITIONS:

As used in this Agreement, the following words and terms shall, unless the context otherwise requires, have the respective meanings provided below:

"Approach" is defined as one direction of travel of one or more lanes on a road or a traffic intersection up to six (6) contiguous lanes controlled by up to two (2) signal phases.

"Axis System" is defined as the web-enabled violation processing system, designed to enable image review and full processing of traffic violations for enforcement programs.

"Intersection" means: (1) The area embraced within the prolongation or connection of the lateral curb lines; or, if none, then the lateral boundary lines of the roadways of two (2) roads which join or intersect one another at, or approximately at, right angles; or, the area within which vehicles traveling upon different roads joining at any other angle may come in conflict. (2) Where a highway includes two (2) roadways thirty (30) feet or more apart, then every crossing of each roadway of such divided highway by an intersecting highway shall be regarded as a separate intersection. In the event such intersecting highway also includes two (2) roadways thirty (30) feet or more apart, then every crossing of two (2) roadways of such highways shall be regarded as a separate intersection.

"Motor Vehicle" means any self-propelled vehicle not operated upon rails or guide-way, but not including any bicycle or electric personal assisted mobility device.

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7681 East Gray Road • Scottsdale, Arizona 85260 • TEL: 480.443.7000 • FAX: 480.607.0901

www.atsol.com • www.RedLightCamera.com • www.PlatePass.com

"Notice of Violation" or "Citation" means a citation or notice of violation or equivalent instrument issued by a competent state or municipal law enforcement agent or agency or by a court of competent jurisdiction relating to a violation documented or evidenced by Axis™.

"Owner" means the person or entity identified by the Florida Department of Motor Vehicle, or other state vehicle registration office, as the registered owner of a vehicle.

"Person" or "persons" means any individual, partnership, joint venture, corporation, trust, unincorporated association, governmental authority or political subdivision thereof or any other form of entity.

"Recorded Images" means photographic, electronic, digital or video images of a Motor Vehicle, recorded by a Traffic Infraction Detector and establishing a time sequence of the Motor Vehicle entering the Intersection.

"Red Zone Infraction" means an offense whereby a Traffic Infraction Detector System establishes that a Motor Vehicle entered an Intersection controlled by a Traffic Control Signal at a time when the Traffic Control Signal for such vehicle's direction of travel was red or did not make a right turn in a careful or prudent manner.

"Traffic Infraction Detector or Traffic Control Signal Monitoring System" or "Camera System" or "System" means an electronic system that captures recorded images of Motor Vehicles entering an Intersection against a red light Traffic Control Signal, or a photo-traffic monitoring device consisting of one (1) rear camera, strobe, and traffic monitoring device capable of accurately detecting a traffic infraction on up to six (6) contiguous lanes which records such data with two or more images of such vehicle. "Camera System" shall also, where the sense requires, include any enclosure or cabinet and related appurtenances in which the Axis™ is stationed.

"Traffic Infraction Enforcement Officer" means an employee of Customer's police department who meets the qualifications of Section 316.640(5)(a) of the Florida Statutes.

"Traffic Control Signal" means any device that shows green, yellow and red lights or colored lighted arrows, successively, one at a time, or in combination, by which traffic is directed to stop and permitted to proceed.

"Unamortized Costs" means the cost of a fixed asset less the total depreciation shown against that asset up to a specified date. Unamortized costs for this Agreement may include construction and installation of equipment and the cost of the equipment and the cost of the equipment that is remaining provided the equipment has a useful life and cannot be used at an alternate location.

"Uniform Traffic Citation" means a uniform traffic citation as described in Section 316.650 of the Florida Statutes, as may be amended from time to time.

"Violation" means a violation of Section 316.074(1) or 316.075(1)(c)1 of the Florida Statutes or City of Sunrise Code Section 14-76, as may be amended or re-codified from time to time.

"VIMS Analysis" is a video analysis to provide a statistical assessment of violations rates at suspected problem intersections and approaches to determine the need for a red light system.

2. ATS AGREES TO PROVIDE:

The scope of work identified in Exhibit "A, Section 1", which is incorporated herein.

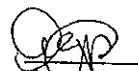
3. CUSTOMER AGREES TO PROVIDE:

The scope of work identified in Exhibit "A, Section 2", which is incorporated herein.

4. TERM AND TERMINATION:

This contract shall be effective on the last date below.

The term of this Agreement shall be for thirty-nine (39) months beginning on the date the permit for the installation of the first installed Camera System is issued (the "Start Date"), such start date shall be provided to Customer in writing by ATS, and the term of this Agreement may be extended for up to three (3) additional one (1) year periods providing both Customer and ATS agree in writing to the extension.


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However, Customer or ATS may terminate this Agreement at the expiration of any term by providing written notice of its intent not to extend the Agreement 120 days prior to the expiration of the current term.

The Contractor's services may be terminated:

- i) By mutual written consent of the parties;
- ii) For cause, by either party where the other party fails in any material way to perform its obligations under this Agreement. Termination under this subsection is subject to the condition that the terminating party notifies the other party of its intent to terminate, stating with reasonable specificity the grounds therefore, and the other party fails to cure the default within thirty (30) days after receiving notice.
- iii) For convenience, by either party in the event that state legislation or a court decision prohibits the deployment of the Traffic Control Signal Monitoring Systems that is the subject of this Agreement. Upon termination of this Agreement for convenience, the parties recognize that Customer may have to process traffic law violations in the "pipeline," and that ATS accordingly must assist Customer in this regard. Accordingly, the parties shall take the following actions, and shall have the following obligations, which survive termination: Customer shall cease using the Axis System, shall return or allow ATS to recover all provided equipment within a reasonable time not to exceed ninety (90) days, and shall not generate further images to be processed. ATS shall provide Customer with any and all revenues owed to Customer accruing prior to the date of termination and ATS shall be entitled to its fees, pursuant to this Agreement, from said accrued revenues provided to Customer, and Customer shall have no further obligation to pay ATS if the accrued revenues are not sufficient to meet ATS' fees.
- iv) For termination without cause, Customer shall have the right to terminate Agreement without cause upon ninety (90) days written notice to ATS. For any termination without cause, Customer will pay ATS for all documented unamortized costs required for the implementation of the red light enforcement program not already offset by fees paid to ATS prior to the termination date. For any termination without cause, ATS shall not be entitled to compensation fees for lost profits or lost opportunities and all payments made under this section are subject to audit by the Customer. Unamortized costs shall be determined by establishing the total cost of each approach, which shall not exceed \$100,000 per camera system, which amount shall be divided by thirty-six (36) months, which shall then be multiplied by the number of whole months remaining in the term of this Agreement. This amount may be in excess of service fees paid.

Upon termination or expiration of this Agreement the parties recognize that the Customer may have to process traffic law violations in the "pipeline," and that ATS accordingly must assist the Customer in this regard. Accordingly, the parties shall take the following actions, and shall have the following obligations, which survive termination during the wind-down period: The Customer shall cease using the Axis™ System, shall return or allow ATS to recover all provided equipment within a reasonable time not to exceed ninety (90) days, and shall not generate further images to be processed. Unless directed by the Customer not to do so, ATS shall continue to process all images taken by the Customer before termination and provide all services associated with processing in accordance with this Agreement, and shall be entitled to all Fees specified in the Agreement as if the Agreement were still in effect.

5. ASSIGNMENT:

ATS shall not transfer or assign this Agreement without prior written consent of the Customer.

6. FEES AND PAYMENT:

Customer shall pay for all equipment, services and maintenance based on the fee schedule indicated in, Exhibit A, ("Service Fee Schedule"), which is incorporated herein.

Customer shall pay all fees due ATS based upon invoices from the preceding month within forty-five (45) days after the date of satisfactory delivery at the place of acceptance and receipt of correct invoice at the


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office specified, whichever occurs last. Late payments are subject to interest calculated in accordance with the Florida Local Government Prompt Payment Act, Section 218.70 *et seq.*, Florida Statutes (2009), as may be amended or revised, on unpaid balances.

Unit prices will be fixed for the first thirty-nine (39) months of the first term and thereafter on each anniversary date of the term unit prices will increase by the CPI, according to the average change during the prior 12 months in the Consumer Price Index for All Urban Consumers (CPI-U) for Miami-Ft. Lauderdale average as published by the Bureau of Labor Statistics, U.S. Department of Labor, except that any such increase shall not exceed five percent (5%).

During the term of the contract, payments by the Customer may be made to ATS under a Flexible Payment Plan as, the Customer may defer certain payments to ATS due and owing during a fiscal year (such fiscal year to run from October 1 to September 30), which shall be the "billing period". If, at the end of a fiscal year, sufficient funds have not been collected by the Customer to pay the accrued balance then due to ATS, ATS agrees to waive its right to recovery with respect to any balance owing to ATS at the end of that fiscal year. For purposes of this clause, the term "funds" means any revenue retained by Customer according to the distribution methods applicable under this Agreement and applicable state law. This clause will be applied as follows: ATS will maintain an accounting of any net balances owed ATS each month during the billing period. If the amount collected during a month exceeds the amount of the ATS invoice for the same month, the Customer shall pay ATS the total amount due on the invoice and Customer will retain the balance of the funds. If the amount collected during a month is less than the amount of the ATS invoice for the same month, the Customer shall pay ATS only the amount collected during the same month and Customer may defer payment of the remaining balance. Payments due ATS shall be reconciled by applying funds collected in applicable months during the same billing period, first to the accrued balance and then to the subsequent monthly invoice during the same billing period. At any time the ATS invoices, including any accrued balance, are fully repaid, the Customer will retain all additional funds collected during the billing period. Such additional funds (whether reserved in cash or not by the Customer) will be available to offset future ATS invoices during the same billing period. The Flexible Payment Plan shall not apply where a camera system is installed at the sole discretion of the Customer.

7. INTERSECTION AND VIOLATION RATE ANALYSIS:

Prior to implementing the Axis System, ATS will conduct an analysis of each Approach being considered for a Camera System, unless agreed to otherwise by the Customer. If ATS deems necessary, ATS will use the Axis™ VIMS (Violation Incident Monitoring System) or other tool or means to complete the analysis over an eight (8) to twelve (12) hour period. The Customer will be provided a report on violations recorded at each monitored approach, including the time of day and lanes on which the violations occurred. For any Approach recommended by the Customer, ATS may install a Camera System. However, ATS may elect not to install a Camera System where traffic violation data does not support installation of the Axis System. Violation count of less than ten (10) during testing period of 8 hours or more may not support installation of the Axis System. Customer at its sole discretion may direct ATS to install a camera system at any location within its jurisdiction, however in such a situation the flexible payment plan in Section 6 shall not apply, and such installation shall be subject to a constructability analysis by ATS.

8. COMMUNICATION OF INFORMATION:

ATS agrees that all information obtained by ATS through operation of the Axis System shall be made available to the Customer at any time during ATS's normal working hours, excluding trade secrets as defined by Florida law and other information that is confidential pursuant to Florida law or exempt from disclosure pursuant to Florida law and not reasonably necessary for the prosecution of citations or the fulfillment of Customer's obligation under this Agreement. The parties agree that this agreement and the City of Sunrise are subject to Florida's Public Records Act as set forth in Chapter 119, Florida Statutes.

9. CONFIDENTIAL INFORMATION:

Confidential information given by ATS to Customer and appropriately designated trade secret prior to or at time of disclosure pursuant to Florida Law may be exempt from disclosure pursuant to Florida law. Nothing in this paragraph shall be construed contrary to the terms and provisions of any Florida law governing public


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records or similar laws, insofar as they may be applicable. ATS shall not use any information acquired by this program with respect to any violations or the Customer's law enforcement activities for any purpose other than the program encompassed by this Agreement.

10. OWNERSHIP OF SYSTEM:

It is understood by the Customer that the System being installed by ATS is, and shall remain, the sole property of ATS, unless separately procured from ATS through a lease or purchase transaction. The System is being provided to Customer only under the terms and for the term of this Agreement.

11. RECORDS AND AUDIT:

ATS shall maintain during the term of the Agreement all books of account, reports and records in accordance with generally accepted accounting practices and standards for records directly related to this Agreement. The form of all records and reports shall be subject to the approval of the Customer's Finance Department. ATS agrees to make available to the Customer's Finance Department, during normal business hours and in Broward County, Florida all books of account, reports and records relating to this Agreement for the duration of the Agreement and retain them for a minimum period of three (3) years beyond the last day of the Agreement term or such other period required by the Florida public records law and Florida public records retention schedules, whichever is longer.

12. INDEMNIFICATION:

ATS shall comply with all laws, ordinances and regulations governing the use of photo enforcement systems applicable to this Agreement and shall comply with the maintenance procedures and manufacturer recommendations for operation of the Axis™ equipment which affect this Agreement, and shall indemnify and save harmless the Customer against claims arising from the violations of the maintenance procedures and manufacturer recommendations for operation of the equipment as a result of the negligence, recklessness, or willful or intentional misconduct of ATS, its officers and directors, agents, attorneys, and employees, but excluding any employees or agents of Customer.

ATS agrees to protect, defend (Counsel being subject to City's approval, however such approval shall not be withheld or delayed unless City provides information indicating Counsel is not experienced in the field of law at issue), indemnify, and hold harmless the Customer and the Customer's officers, employees, and agents from and against any and all losses, penalties, damages, settlements, fines claims, costs, charges for other expenses, or liabilities of every and any kind including any award of attorney fees and any award of costs in connection with or arising out of this Agreement from any negligent, intentional or reckless act or omission by ATS or any of ATS's officers, employees, agents, contractors, or subcontractors in performing the work agreed to or performed by ATS under the terms of this Agreement. Without limiting the foregoing, any and all claims, suits or other actions relating to personal injury, death, damage to property, defects in materials or workmanship, actual or alleged violations of any applicable statute, ordinance, administrative order, rule or decree of any court in connection with or arising from any negligent, intentional or reckless act or omission by ATS shall be included in this indemnity.

In the event of any legal challenge to the Customer's enforcement of the State Law, ATS shall provide reasonable administrative assistance to the Customer in responding to that challenge, including, but not limited to, providing reasonable assistance to the Customer in responding to discovery sought from the Customer, providing reasonable assistance to the Customer in explaining and presenting the technical aspects and operations of the ATS Camera System, and providing reasonable assistance to the Customer in identifying and locating violators.

13. INSURANCE:

ATS shall maintain, at its own cost, the following minimum scope and limits of insurance:

- a. Commercial General Liability Insurance including coverage for bodily injury, property damage, premises and operations, products/completed operations, personal and advertising injury, and contractual liability with a combined single limit of \$1,000,000 per occurrence. Such insurance shall name the Customer and the Customer's officers, employees, volunteers and elected officials as additional insured's for liability arising from ATS's operation.


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- b. Workers Compensation as required by applicable state law, and Employers' Liability Insurance with limits of not less than \$500,000 each accident; ATS shall at all times maintain worker's compensation insurance coverage in the amounts required by law, but shall not be required to provide such coverage for any actual or statutory employee of Customer.
- c. Comprehensive Business Automobile Liability Insurance for all owned, non-owned and hired automobiles and other vehicles used by ATS with a minimum \$1,000,000 per occurrence combined single limit bodily injury and property damage.

ATS shall require any subcontractors doing work under this Agreement to provide and maintain the same insurance, which insurance shall also name the Customer and the Customer's officers, employees, volunteers and elected officials as additional insureds.

Certificates showing ATS is carrying the above described insurance, and evidencing the additional insured status specified above, shall be furnished to the Customer within thirty calendar days after the date on which this Agreement is made. Such certificates shall show that the Customer shall be notified at least thirty (30) days in advance of all cancellations of such insurance policies. ATS shall forthwith obtain substitute insurance in the event of a cancellation.

14. STATE LAW TO APPLY:

This Agreement shall be construed under and in accordance with the laws of the State of Florida. The parties agree that venue for any dispute shall lie within Courts having jurisdiction over Broward County, Florida.

15. DISPUTE RESOLUTION:

In the event the parties are unable to resolve any dispute by good-faith negotiation, such dispute may be resolved by litigation only in the state court sitting in Broward County, Florida. The parties agree that jurisdiction and venue are proper in said County. Both parties hereby agree to waive a jury trial. Except as set forth in Section 12 and 22, each party will be responsible for their own attorney's fees.

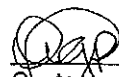
16. AMENDMENTS TO THE AGREEMENT:

The Customer may from time to time consider it in its best interest to change, modify or extend term, conditions or covenants of this Agreement or require changes in the scope of the Services to be performed by ATS, or request ATS to perform additional services regardless of and without invalidating the process that was used to procure the services enumerated under this Agreement. Any such change, addition, deletion, extension or modification, including any increase or decrease in the amount of ATS's compensation, which are mutually agreed upon by and between the Customer and ATS shall be incorporated in written amendments (herein called "Amendments") to this Agreement that are duly executed by both parties. Such Amendments shall not invalidate the procurement process or this Agreement nor relieve or release ATS or the Customer of any of its obligations under this Agreement unless stated therein.

Deletion or Modification of Services: The Customer reserves the right to delete any portion of this Agreement at any time without cause, and if such right is exercised by the Customer, the total fee shall be reduced in the same ratio as the estimated cost of the work deleted bears to the estimated cost of the work originally planned. If work has already been accomplished on the portion of the Agreement to be deleted, ATS shall be paid for the deleted portion on the basis of the estimated percentage of completion of such portion. If ATS and Customer agree on modifications or revisions to the task elements, after the Customer has approved work to begin on a particular task of project, and a budget has been established for that task or project, ATS will submit a revised budget to the Customer for approval prior to proceeding with the work. Amendments will require written approval from Customer.

17. LEGAL CONSTRUCTION AND REQUIREMENTS:

In case any one or more of the provisions contained in this Agreement shall for any reason, by a court of competent jurisdiction, be held to be invalid, illegal, or unenforceable in any respect, such invalidity, illegality, or unenforceability shall not affect any other provision thereof and this Agreement shall be construed as if such invalid, illegal, or unenforceable provision had not been contained herein.


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18. NO AGENCY:

Except as specifically provided otherwise herein, ATS is an independent contractor under this Agreement. Personal services provided by ATS shall be by employees of ATS who shall be subject to supervision by ATS, and not as officers, employees, or agents of the Customer. Personnel policies, tax responsibilities, social security, health insurance, employee benefits, purchasing policies and other similar administrative procedures applicable to services rendered under this Agreement shall be those of ATS.

19. FORCE MAJEURE:

The Customer and ATS will be excused from the performance of their respective obligations under this Agreement when and to the extent that their performance is delayed or prevented by any circumstances beyond their control including, hurricane, fire, flood, explosion, strikes or other labor disputes, act of God or public emergency, war, riot, civil commotion, malicious damage, act or omission of any governmental authority, delay or failure or shortage of any type of transportation, equipment, or service from a public utility needed for their performance, provided that:

- a. the non-performing party gives the other party prompt written notice describing the particulars of the Force Majeure including, but not limited to, the nature of the occurrence and its expected duration, and continues to furnish timely reports with respect thereto during the period of the Force Majeure;
- b. the excuse of performance is of no greater scope and no longer duration than is required by the Force Majeure;
- c. no obligations of either party that arose before the Force Majeure causing the excuse of performance are excused as a result of the Force Majeure; and,
- d. the non-performing party uses its best efforts to remedy its inability to perform.

If the camera system is inoperable for a period longer than 48 hours due to Force Majeure, ATS agrees to reduce its monthly fee by 1/30th for each day the system is inoperable. Notwithstanding the above, performance shall not be excused under this Section for a period in excess of two (2) months, provided that in extenuating circumstances, the Customer may excuse performance for a longer term. Economic hardship of ATS will not constitute Force Majeure. The term of the Agreement shall be extended by a period equal to that during which either party's performance is suspended under this Section.

20. PERMITS, FEES, AND LICENSES:

ATS shall, at its own expense, obtain all necessary permits, pay all licenses, and fees, required to comply with all local ordinances, county, state and federal laws, rules and regulations applicable to business to be carried out under this Agreement. City agrees to waive any City permit fees under its jurisdiction and control, except for re-inspection fees, if required.

21. NON-DISCRIMINATION:

There shall be no discrimination as to race, sex, color, creed, age, disability, marital status or national origin in the operations conducted under this Agreement.

22. SUBCONTRACTORS:

ATS must be capable of performing all the services contained within this Agreement. If ATS uses a subcontractor in the performance of these services, ATS shall submit complete information on any/all proposed subcontractors. The same qualifications requirements, and all other terms and conditions of the Agreement shall also apply to the subcontractor. The Customer reserves the right to approve or disapprove of any sub-contractor proposed.

ATS shall ensure that all of ATS's subcontractors perform in accordance with the terms and conditions of this Agreement. ATS shall be fully responsible for all of ATS's subcontractors' performance, and liable for any of ATS's subcontractors' non-performance and all of ATS's subcontractors' negligent, intentional or reckless acts and omissions. ATS shall defend, counsel being subject to the City's approval or disapproval, and indemnify and hold harmless the City and the City's officers, employees, and agents from and against any claim, lawsuit, third party action, settlement, or judgment, including any award of attorney fees and any award of costs, by or in favor of any of ATS's subcontractors for payment for work performed


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for the City by any of such subcontractors, and from and against any claim, lawsuit, third party action, settlement, or judgment, including any award of attorney fees and any award of costs, occasioned by or arising out of any negligent, intentional or reckless act or omission by any of ATS's subcontractors.

23. MOST FAVORED GOVERNMENT ENTITIES:

ATS represents that the City of Sunrise shall receive the best pricing for the services rendered by ATS for jurisdictions within the State of Florida with substantially similar terms, conditions and services of similar size and scope as the City of Sunrise and where such pricing for services was contracted after the execution of this Agreement. At any time, the Customer shall have the right to request a change in pricing structure to meet the same terms, conditions and services as any other jurisdiction where such pricing for services was contracted after the execution of this Agreement. ATS and the City will discuss the terms, conditions and pricing to assure that the alternate terms are for the same or similar utilization of the system as they City, and if so the more favorable terms, conditions and pricing will be incorporated into the City of Sunrise's contract. Any pricing change shall be negotiated in good faith by the parties.

24. NOTICES:

Any notice or demand which under the terms of this Agreement or under any statute must or may be given or made by ATS or Customer shall be in writing and shall be given or made by personal service, telegram, first class mail, overnight delivery, or by certified or registered mail to the parties at the following respective addresses:

TO THE CUSTOMER:

City of Sunrise FL Police Department
777 Sawgrass Corporate Parkway
Sunrise, Florida 33325
Attention: John E. Brooks
Police Chief

TO ATS:

American Traffic Solutions, Inc.
7681 East Gray Road
Scottsdale, Arizona 85260
Attention: Adam E. Tuton
Chief Operating Officer

WITH COPY TO:

City of Sunrise City Attorney
10770 W. Oakland Park Boulevard
Sunrise, FL 33351

25. ENTIRE AGREEMENT:

The provisions of this Agreement, including the recitals, comprise all of the terms, conditions, agreements, and representations of the parties with respect to the subject matter hereof. All representations and promises made by any party to another, whether in writing or orally, concerning the subject matter of this Agreement are merged into this Agreement.

26. COUNTERPART EXECUTION:

This Agreement may be executed in one or more counterparts, each of which shall constitute an original, but all of which taken together shall constitute one and the same instrument. Each party represents and warrants that the representative signing this Agreement on its behalf has all right and authority to bind and commit that party to the terms and conditions of this Agreement.


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IN WITNESS OF THE FOREGOING, the parties have set their hands and seals the day and year first written below. By signing below, each of us agrees to the terms and conditions of this Agreement, which includes the attached Exhibits.

City of Sunrise, Florida

ATTEST:

By: Meryl Girard 12-20-10
Felicia M. Bravo, City Clerk
Meryl Girard, Asst.
Date

By: [Signature] 12-20-
Michael J. Ryan, Mayor
Date

APPROVED AS TO FORM

By: [Signature] 12-17-10
Stuart R. Michelson
City Attorney
Date

AMERICAN TRAFFIC SOLUTIONS, INC.

(Corporate Seal)

ATTEST:

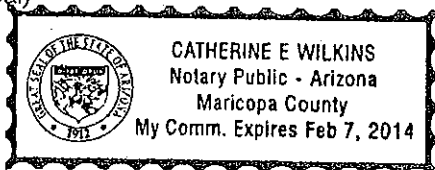
[Signature] 12-15-10
Date

By: [Signature] 12-15-10
Adam E. Tuton
Chief Operating Officer
Date

STATE OF ARIZONA
COUNTY OF MARICOPA

The foregoing instrument was acknowledged before me this 15th day of December, 2010, by Adam E. Tuton as Chief Operating Officer for ATS American Traffic Solutions, Inc., a Kansas corporation authorized to transact business in the State of Florida as ATS American Traffic Solutions, Inc.

(Seal)



Catherine E. Wilkins
Notary Public, State of Arizona
(signature of Notary Public - State of ARIZONA)

CATHERINE E WILKINS
(Print, Type, or Stamp Commissioned Name of Notary Public)

Personally Known ☒ OR produced Identification _____

Type of Identification Produced _____

[Signature]
Customer

[Signature]
ATS

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Exhibit A
ATS SCOPE OF WORK

1. AMERICAN TRAFFIC SOLUTIONS (ATS) SCOPE OF WORK

1.2 ATS IMPLEMENTATION

- 1.2.1 ATS agrees to provide a solution for Camera Systems to the Customer wherein all reasonably necessary elements required to implement and operate the solution are the responsibility of ATS, except for those items identified in Section 2 titled "Customer Scope of Work". ATS and the Customer understand and agree that new or previously unforeseen requirements may, from time to time, be identified and that the parties shall negotiate in good faith to assign to the proper party the responsibility and cost for such items. In general, if work is to be performed by the Customer, unless otherwise specified, the Customer shall not charge ATS for the cost. All other in-scope work external to the Customer, including restoration of the area where camera is installed, is the responsibility of ATS.
- 1.2.2 ATS agrees to make every effort to adhere to the Project Time Line agreed upon between the parties.
- 1.2.3 ATS will assist the Customer with either video evaluation of candidate sites using the Axis VIMS system or statistical modeling of candidate sites.
- 1.2.4 ATS will install Camera Systems at a number of intersection or grade crossing approaches to be agreed upon between ATS and the Customer after completion of site analyses. In addition to any initial locations, the parties may agree from time to time to add to the quantities and locations where Camera Systems are installed and maintained. In the event that a Camera System is installed or removed, ATS will at its cost, restore any alterations to Customer property to substantially the same condition it was prior to the start of this Agreement.
- 1.2.5 ATS will operate each Camera System on a 24-hour basis, barring downtime for maintenance and normal servicing activities.
- 1.2.6 **ATS'** In-house Communications Department will assist **Customer** with public information and outreach campaign strategies. In addition, depending upon the agreed-upon strategy, **ATS** may pay for agreed upon extra scope expenditures for public relations consultants, advertising, or media relations provided that such extra scope expenditures are reasonable. **ATS** shall implement such program in accordance with the elements included in the **ATS** proposal dated August 26, 2009.
- 1.2.7 ATS agrees to provide a secure web site (www.violationinfo.com) accessible to recipients who have received Notices of Violation or Uniform Traffic Citations by means of a Notice # and a PIN, which will allow violation image and video viewing.
- 1.2.8 The Customer and ATS will complete the Project Business Process Work Flow design within 30 calendar days of contract signature, unless mutually agreed to otherwise by both parties.
- 1.2.9 ATS shall make best efforts to provide technician site visits to each Camera System once per month to perform preventive maintenance checks consisting of camera enclosure lens cleaning; camera, strobe and controller enclosure cleaning; inspection of exposed wires; and general system inspection and maintenance or shall respond as requested by City within 24 hours.


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- 1.2.10 ATS shall repair a non-functional Camera System within forty-eight (48) hours of determination of a malfunction and make its best efforts to repair within twenty-four (24) hours.
- 1.2.11 ATS shall repair the Axis VPS system within one (1) business day from the time of the outage. Outages of Customer internet connections or infrastructure are excluded from this service level.
- 1.2.12 For any city using ATS lockbox or epayment services, ATS will establish a demand deposit account bearing the title, "American Traffic Solutions, Inc. as agent for Customer" at U.S. Bank. All funds collected on behalf of the Customer will be deposited in this account and transferred by wire the first business day of each week to the Customer's primary deposit bank. The Customer will identify the account to receive funds wired from U.S. Bank. Customer shall sign a W-9 and blocked account agreement, to be completed by the Customer, to ensure the Customer's financial interest in said U.S. Bank account is preserved.
- 1.2.13 ATS at their expense will design, fabricate, install, obtain permits (per DOT) and maintain one red light camera warning sign, including the supplemental panel with the legend "INCLUDES RIGHT TURN", for each monitored approach with camera.
- 1.2.14 ATS or subcontractors will be responsible for any costs associated with building, construction, electrical, street use and/or pole attachment permits.
- 1.2.15 ATS shall assign a project manager who will be the liaison between the Customer and ATS and will be responsible for project activities such as development of a project plan and tracking of deliverables. The Customer shall reserve the right to request a new project manager.
- 1.2.16 ATS shall provide Customer with one (1) personal computer workstation meeting the minimum requirements necessary for use of the Axis™ VPS system. The provided personal computer workstation will be owned and maintained by Customer.
- 1.2.17 ATS shall provide as part of the standard monthly service fee in Exhibit B, training for personnel of the Customer, including, but not limited to, the persons who Customer shall appoint as Traffic Infraction Enforcement Officers and other persons involved in the administration of the program, regarding the operation of the ATS System and the program. This shall include training with respect to the ATS System and its operations, strategies for presenting Infractions Data in court and judicial proceedings and a review of the Enforcement Documentation. All initial training shall be held in Sunrise. Future training, unless otherwise agreed to by the parties, may be conducted through on-site training or webinar.
- 1.2.18 ATS shall ensure that all equipment that it provides pursuant to this Agreement meets the specifications, if any, adopted by the Florida Department of Transportation pursuant to Florida Statutes, Section 316.07456, by July 1, 2011.
- 1.3 ATS OPERATIONS**
- 1.3.1 ATS shall provide assistance to the Customer for a public announcement and awareness campaign required thirty (30) days in advance of the commencement of the Customer's program. ATS will provide a website that is independent from the Customer's website which will contain relevant proactive information in support of the road safety program.
- 1.3.2 ATS shall provide the Customer with an automated web-based citation processing system (Axis™ VPS) including image processing, color printing and mailing of a Notice of Violation per chargeable event. Each Notice of Violation shall be delivered by first class mail to the Owner within the statutory period. Mailings to Owners responding


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to Notices of Violation identifying drivers in affidavits of non-liability or by rental car companies are also included.

- 1.3.3 ATS shall act as Customer's agent for the limited purpose of making an initial determination of whether Recorded Images should be forwarded to the Traffic Infraction Enforcement Officer to determine whether a Violation has occurred and shall not forward for processing those Recorded Images that clearly fail to establish the occurrence of a Violation.
- 1.3.4 Upon expiration of the due date of the Notice of Violation, Axis™ VPS shall issue a Uniform Traffic Citation, which shall be delivered by certified mail to the Owner within the statutory period. The issuance of the Uniform Traffic Citation shall be based on the Traffic Infraction Enforcement Officer's approval, as provided in Section 2.4 of this Exhibit A, of the Notice of Violation.
- 1.3.5 ATS shall make available a form of affidavit, approved by Customer, to be used by an Owner who wishes to establish the existence of an exemption to a Notice of Violation or Uniform Traffic Citation as provided in Section 316.0083(1)(d)1 of the Florida Statutes, as may be amended or recodified from time to time.
- 1.3.6 Axis™ VPS shall apply an electronic signature to a Notice of Violation or Uniform Traffic Citation, when authorized to do so by an approving Traffic Infraction Enforcement Officer.
- 1.3.7 ATS shall obtain in-state vehicle registration information necessary to issue citations assuming that it is named as the Customer's agent.
- 1.3.8 ATS shall seek records from out-of-state vehicle registration databases and apply records found by Axis to issue citations for the Customer.
- 1.3.9 The Customer and ATS acknowledge that, under the State of Law, uniform traffic citations will be adjudicated in court and that ATS may be required to incur costs to develop an interface with the court system, which may include the electronic submission of the Uniform Traffic Citation to the County Court. ATS shall be responsible for its own development costs for any such interface. If Customer is unable to or does not desire to integrate ATS data into its adjudication system, ATS shall provide an on-line adjudication processing module, if Customer requests, which will enable the adjudication function to review cases, related images, correspondence and other related information required to adjudicate the disputed Uniform Traffic Citation. The system will also enable the adjudication staff to accept and account for payments. Any costs charged by a third-party to integrate the ATS system to a Customer computer system shall be borne by the Customer. If the Customer approves the quoted work and cost, ATS may agree to cover these up front costs and recover the costs in addition to its normal fees.
- 1.3.10 ATS shall provide to the Customer access to the Axis™ VPS system, which provides the Customer with ability to run and print any and all standard system reports.
- 1.3.11 ATS shall at ATS's expense provide the Customer with and train a local expert witness able to testify in administrative proceedings and in court on matters relating to the accuracy, technical operations, and effectiveness of the Axis™ System until judicial notice is taken, or whenever it may be necessary.
- 1.3.12 In those instances where damage to a Camera System or sensors is caused by negligence on the part of the Customer or its authorized agent(s), ATS will provide Customer an estimate of the cost of repair. Upon authorization to proceed with the repairs or replacement, ATS shall replace or repair any damaged equipment and


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invoice for the pre-approved repair cost. ATS shall bear the cost to replace or repair equipment damaged in all other circumstances.

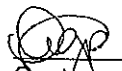
1.3.13 ATS shall provide a toll-free help line to help the Customer resolve any problems encountered regarding its Red Light Camera System and/or citation processing. The help line shall function during normal business hours. Call Center hours are Monday-Friday 8:00am-8:00pm EST; Help Desk for Customers is 24 x 7, 365 days.

1.3.14 As part of its system, ATS shall provide Owners with the ability to view Recorded Images of Violations involving their motor vehicles online. This online viewing system shall include a link to the ATS payment website(s) and may offer the opportunity to download a form of affidavit to establish an exemption under Section 316.0083(1)(d) of the Florida Statutes. Online obtained affidavits submitted in response to a Notice of Violation or Uniform Traffic Citation shall be directed to and processed by ATS and communicated to the Customer via the Axis system. ATS shall adhere to timelines and other regulations specified in Section 316.0083 of the Florida Statutes in the processing of affidavits. The ability for Owners to review Recorded Images of the Violations involving their motor vehicles online shall survive the termination of the Agreement up to the date of final disposition of the case.

2. CUSTOMER SCOPE OF WORK

2.2 GENERAL IMPLEMENTATION REQUIREMENTS

- 2.2.1 Within seven (7) business days of contract execution, the Customer shall provide ATS with the name and contact information for a project manager with authority to coordinate Customer responsibilities under the Agreement.
- 2.2.2 Within seven (7) business days of contract execution, the Customer shall provide ATS with the name and contact information for a Uniform Traffic Citation manager responsible for oversight of all Uniform Traffic Citation-related program requirements.
- 2.2.3 Within seven (7) business days of contract execution, the Customer shall provide ATS with the name(s), contact information, and electronic signature(s) of all Traffic Infraction Enforcement Officers authorized by Customer's police department to approve and issue Notices of Violation and Uniform Traffic Citations.
- 2.2.4 Customer shall establish a method by which an Owner who has received a Notice of Violation or a Uniform Traffic Citation may review the images and video evidencing the Violation at www.violationinfo.com free of charge. This may be at a publicly available terminal at a Customer facility or by appointment with the Uniform Traffic Citation manager.
- 2.2.5 Within seven (7) business days of contract execution, the Customer shall provide ATS with the name and contact information for an Appeals Coordinator or staff responsible for oversight of all related program requirements.
- 2.2.6 Customer shall make every effort to adhere to the Project Time Line to be agreed upon between the parties.
- 2.2.7 Customer shall direct the Chief of Police or approved alternate to execute the ATS DMV Subscriber Services Agreement (Exhibit C) to provide verification to the State Department of Highway Safety and Motor Vehicles, National Law Enforcement Telecommunications System, or appropriate authority indicating that ATS is acting as an Agent of the Customer for the purposes of accessing vehicle ownership data pursuant to the list of permissible uses delineated in the Drivers Privacy Protection Act 18 U.S.C. § 2721, Section (b) (1) and as may otherwise be provided or required by any provision of applicable state law.


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- 2.2.8 The Customer and ATS shall complete the Project Business Process Work Flow design within thirty (30) calendar days of contract signature, unless mutually agreed to otherwise by both parties.

2.3 STREETS AND TRAFFIC DEPARTMENT OPERATIONS

- 2.3.1 In the event an installed camera system at an intersection approach is capturing less than an average of 2.11 violations per day for three (3) consecutive months, through no fault of ATS or Customer, at the sole discretion of Customer and at no cost to Customer, ATS shall remove the camera system entirely, or relocate the camera system to a new location mutually agreed to by the parties.
- 2.3.2 The Customer shall assist ATS in obtaining access to traffic signal phase connections according to approved design.
- 2.3.3 Where possible, Customer shall assist ATS in obtaining access to power from existing power sources. Where possible, Customer shall assist in obtaining access to traffic signal phase connections to a pull box, pole base, or controller cabinet nearest to each Camera System within the Customer's jurisdiction. The costs, if reasonable, for any additional conduit or power infrastructure needed to support installation of the Camera System shall be funded by ATS.
- 2.3.4 Customer shall endeavor to approve or reject ATS submitted plans within fifteen (15) business days of receipt. ATS and Customer will endeavor to approve the plans in a timely manner.
- 2.3.5 The Customer will endeavor to issue all needed permits to ATS and its subcontractors in an expedited fashion of plan approval.
- 2.3.6 Customer and ATS shall mutually agree to install DOT approved vehicle detection sensors, at ATS's cost, in the pavement of roadways within the Customer's jurisdiction, provided all required permits have been approved and written authorization of approval from Customer has been received. In the event that a sensor is installed or removed, ATS will at its cost, restore any alterations to Customer property to substantially the same condition it was prior to the start of this Agreement.
- 2.3.7 If use of private property right of way is needed, Customer shall assist ATS in acquiring permission to build in existing utility easements as necessary. Any additional cost, if reasonable, for private property right of way lease/rental costs shall be borne by ATS. ATS reserves the right to not install on private property if the costs are unreasonable. In the event that Customer desires to manage easement permits, ATS and the Customer will mutually determine responsibility in acquisition of permits and associated costs.
- 2.3.8 Customer may allow ATS to build needed infrastructure in existing Customer owned easement as necessary, if allowable by easement and only after required permits have been approved.

2.4 POLICE DEPARTMENT OPERATIONS

- 2.4.1 Customer's Traffic Infraction Enforcement Officer(s) shall process each potential Violation in accordance with State Laws and/or Customer Ordinances within three (3) days (excluding Saturday, Sunday and Customer observed holidays) of its appearance in the Law Enforcement Review Queue, using Axisis™ to determine which Violations will be issued a Notices of Violation.
- 2.4.2 Customer shall review and approve a form of Uniform Traffic Citation, such form to be provided by ATS, before any Uniform Traffic Citation is mailed by ATS pursuant to this Agreement, with the understanding that any modifications requested by Customer may need to be revised to ensure compatibility with ATS's processes.


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- 2.4.3 If an Owner who receives a Notice of Violation fails to pay the statutory penalty or submit an affidavit that complies with all requirements provided in Section 316.0083(1)(d) of the Florida Statutes within the time period provided in Section 316.0083(1)(b) of the Florida Statutes, as may be amended or recodified from time to time, the issuance of a Uniform Traffic Citation will automatically occur based upon the prior Traffic Infraction Enforcement Officer approval of the Notice of Violation.
- 2.4.4 Customer shall provide ATS with instructions or specifications for the treatment of affidavits, with the understanding that the Customer must approve any modifications that are necessary to ensure compatibility with ATS's processes.
- 2.4.5 Police Department workstation computer monitors for citation review and approval should provide a resolution of 1280 x 1024.
- 2.4.6 For optimal data throughput, Police Department workstations should be connected to a high-speed internet connection with bandwidth of T-1 or greater.
- 2.4.7 Police Department shall provide signatures of all authorized police users who will review events and approve citations on forms provided by ATS.
- 2.5 CUSTOMER OPERATIONS
- 2.5.1 If Customer does not provide payment processing services, Customer shall use ATS payment processing services. The fees for lockbox and epayment services are included as part of the fixed fee structure in Schedule 1, Service Fee Schedule.
- 2.5.2 All Uniform Traffic Citation hearings/proceedings shall be conducted in accordance with the laws of the State of Florida. ATS shall not be required to provide a judge or hearing officer or adjudication facilities to schedule and hear disputed Uniform Traffic Citations.
- 2.5.3 Customer may refer citizens with questions regarding ATS or Axis technology and processes to websites and/or toll-free telephone numbers provided by ATS for that purpose.
- 2.6 MANAGEMENT INFORMATION SERVICES
- 2.6.1 In the event that remote access to the Axis VPS System is blocked by Customer network security infrastructure, the Customer's Department of Management Information Services shall coordinate with ATS to facilitate appropriate communications while maintaining required security measures.


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Exhibit B
Service Fee Schedule

Service Fees Include: Fee includes all costs required and associated with camera system installation, maintenance and on-going field and back-office operations. Includes red-light camera equipment with up to two (2) signal phases, installation, maintenance, violation processing services, DMV records access, mailing of required documents, lockbox and epayment processing services, call center support for general program questions, public awareness program support and access to web-based AXSIS VPS for Traffic Infraction Enforcement Officer review.

Description of Pricing: Fees are based on per camera, per month and are as follows (Plus certified mail processing surcharge of \$4 per piece metered mail, no return receipt for mailing of Uniform Traffic Citation):

Flat Fee Pricing

\$4,750

Customer has a potential need for twenty (20) Intersection Safety Cameras throughout City. ATS shall apply a volume camera discount of \$250 per camera, per month on the pricing fee above during the thirty-six month term of this Agreement. ATS has provided Customer a discount in exchange for the privilege of using Customer's site for presentation purposes. Accordingly, after the Camera System has been installed, Customer agrees to act as a presentation site for prospective ATS customers. Customer also agrees to serve as a reference or remote presentation site on the telephone for prospective ATS customers. By agreeing to be a presentation site, Customer is not necessarily endorsing the ATS Camera System and Customer will not actively participate in any type of marketing and advertising campaign for or on behalf of ATS. Presentations will be coordinated with the appropriate Customer personnel and will be scheduled to minimize the interruption to Customer's operations. ATS will provide Customer reasonable notice for preparation.

In the event Customer and ATS agree to expand program beyond the twenty (20) Intersection Safety Cameras and after the initial twenty (20) cameras are installed, both parties agree to review and negotiate terms and pricing that are mutually acceptable to both parties.


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Exhibit C
DMV Subscriber Agreement

ATS requires that your agency certify the intended use of the information made available to your agency through our services and that such uses are in compliance with the Federal Driver's Privacy Protection Act Title XXXI and other applicable laws governing dissemination of public records. Based on your agency's intended use of such information, ATS will either grant permission to use the service or deny the application. Please specify any of the following permissible uses under §2721 that apply:

- ☐ (1) For use by any government agency, including any court or law enforcement agency, in carrying out its functions, or any private person or entity acting on behalf of a Federal, State or local agency in carrying out its functions.
- ☐ (4) For use in connection with any civil, criminal administrative, or arbitral proceeding in any Federal, State, or local court or agency or before any self-regulatory body, including the service of process, investigation in anticipation of litigation, and the execution or enforcement of judgments and orders, or pursuant to an order of a Federal, State, or local court.
- ☐ (7) For use in providing notice to the owners of towed or impounded vehicles.
- ☐ (10) For use in connection with the operation of private toll transportation facilities.

In consideration of ATS making its Services available, Subscriber agrees to:

- i) utilize ATS provided data only for the purpose(s) specified above; and
- ii) request such information only for the Subscriber's exclusive use in the ordinary course of Subscriber's business and not for resale.

I certified that I am authorized to execute the Subscribe Use Certification on behalf of the Subscriber listed below. On behalf of such Subscriber, I certify that the above statements are true and correct. Subscriber acknowledges and agrees that ATS may from time to time audit Subscriber's use of ATS's Services to ensure that such use is consistent with the intended uses set forth above and with all applicable laws.

This agreement shall be for _____ year(s) commencing on the date below and shall automatically renew annually. This agreement may be terminated within thirty (30) days notice of the anniversary date, annually.

SUBSCRIBER INFORMATION					
Subscriber Agency/Name:					
NLETS Agency ORI:					
Name of Authorized Representative:					
Title of Authorized Representative:					
Mailing Address:					
City:		State:		Zip Code:	
Telephone:	() -	Fax:	() -	Email:	
Signature of Authorized Representative:					
Date Signed:					


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CITY CLERK
CITY OF SUNRISE

SUNRISE, FLORIDA

10 OCT -5 AM 9:17

RESOLUTION NO. 10-135

A RESOLUTION OF THE CITY OF SUNRISE, FLORIDA, APPROVING THE AWARD OF RFP NO. (09)A-09 AND AUTHORIZING THE PURCHASING DIRECTOR TO NEGOTIATE A CONTRACT FOR A RED LIGHT TRAFFIC ENFORCEMENT SYSTEM WITH AMERICAN TRAFFIC SOLUTIONS (ATS) OF SCOTTSDALE, ARIZONA; AND PROVIDING AN EFFECTIVE DATE.

WHEREAS, the City requires the services of a qualified contractor to provide, install and maintain a Red Light Traffic Enforcement System for the Police Department; and

WHEREAS, a request for proposals was issued to obtain the services of such a firm and proposals were received; and

WHEREAS, an evaluation by staff has been conducted;

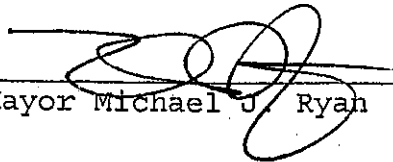
NOW THEREFORE, BE IT RESOLVED BY THE CITY COMMISSION OF THE CITY OF SUNRISE, FLORIDA:

Section 1. The award of RFP (09)A-09 to American Traffic Solutions (ATS) of Scottsdale, Arizona is hereby approved.

Section 2. Approval is hereby granted for the Purchasing Director to enter into contract negotiations with American Traffic Solutions (ATS), to provide, install and maintain a Red Light Traffic Enforcement System, subject to final approval of the City Commission.

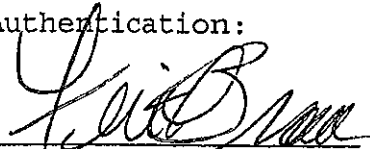
Section 3. Effective Date. This Resolution shall be effective immediately upon its passage.

PASSED AND ADOPTED THIS 28TH DAY OF SEPTEMBER, 2010.



Mayor Michael J. Ryan

Authentication:



Felicia M. Bravo
City Clerk

MOTION: ALU
SECOND: WISHNER

ALU: ABSENT
ROSEN: YEA
SCUOTTO: YEA
WISHNER: YEA
RYAN: YEA

Approved by the City Attorney
as to Form and Legal Sufficiency.



Stuart R. Michelson